

Children's Television, supra, 35 Cal.3d at 216; *Alfaro, supra*, (2009) 171 Cal. App. 4th at 1384 [also noting with respect to a fraud claim based on concealment or nondisclosure, "['[I]t is harder to apply this rule to a case of simple nondisclosure. 'How does one show "how" and "by what means" something didn't happen, or "when" it never happened, or "where" it never happened?' "].) The 2AC fairly apprises demurring defendants of the factual basis for the claim and meets the specificity requirement under the circumstances. (*Randall v. Ditech Financial, LLC, supra*, 23 Cal.App.5th at 810.)

The argument that Plaintiffs could not have relied because the contract was made in August 2021, and they allege the misconduct occurred beginning in the last two years (2AC ¶ 78) does not consider the allegation, liberally construed, that defendants failed to disclose these material facts "in their reports," presumably reports made during the two years preceding the lawsuit. (2AC ¶ 86.)

Demurring defendants argue that they are using "commercially available software used throughout the real estate industry," and that as a result, they owed no duty to disclose that information. (MPA ISO Dem. p. 13, ll. 22-28.) The facts argued are outside the pleadings; in ruling on a demurrer, the Court's "judicial experience" does not extend to such facts.

E. Demurrers for Uncertainty

Demurring parties have made special demurrers for uncertainty to the first, second, fourth and fifth causes of action as well as their general demurrers. Demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135; *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 ["'[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.' [Citations omitted.]"]). Defendants have not argued why any of the claims are uncertain; they have argued in their general demurrers that some of the claims do not meet the specificity standard for stating fraud claims, which the Court has addressed and rejected above.

Conclusion and Ruling

For the reasons set forth above, Alder Creek's demurrer to the 2AC in its entirety is **OVERRULED**. Sequoia's and Alder Creek's general demurrers to the first, second, and fifth causes of action are **OVERRULED**; their general demurrer to the fourth cause of action is **SUSTAINED, WITHOUT LEAVE TO AMEND**. The special demurrers to the first, second, and fifth causes of action are **OVERRULED**, and to the fourth cause of action the special demurrer is **MOOT** based on the ruling sustaining the general demurrer.

10. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION
*HEARING ON MOTION IN RE: SEAL
FILED BY: DAVID T. SEENO
TENTATIVE RULING:

This matter is continued, sua sponte by the Court, to July 27, 2026, 9:00 am, in Department 34.

11. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT OF DAVID T. SEENO
FILED BY:
TENTATIVE RULING:

Based on the stipulation of the parties, this matter is continued to July 27, 2026, 9:00 am, in Department 34, pursuant to the Court's Order signed June 17, 2026.

12. 9:00 AM CASE NUMBER: C25-01037
CASE NAME: ROBERT LOPEZ VS. MARILYNE CASTILLO
HEARING ON DEMURRER TO: ANSWER OF ROBERT LOPEZ
FILED BY:

TENTATIVE RULING:

The Court was advised by the moving party that the demurrer is being withdrawn. Accordingly, the matter is dropped from calendar and the hearing dated vacated.

13. 9:00 AM CASE NUMBER: C25-03561
CASE NAME: RENE ZAMORA VS. MONTEREY VENTURE LP
***HEARING ON MOTION IN RE: TO STRIKE PLTFS CLAIMS**
FILED BY: MONTEREY VENTURE LP
TENTATIVE RULING:

Defendant Monterey Venture LP ("Defendant") filed a Demurrer on February 6, 2026 (the "Demurrer") to the Complaint filed by plaintiffs Rene Zamora and Ana Chavez ("Plaintiffs"). Defendant also filed a separate Motion to Strike on February 6, 2026 (the "Motion to Strike"). The Demurrer and Motion to Strike were both set for hearing on June 22, 2026.

Background

Defendant's Demurrer contends that the second and sixth causes of action fail to state facts sufficient to constitute causes of action. Defendant also demurs to the first and fourth causes of action as duplicative of other pled causes of action.

Furthermore, Defendant moves to strike certain portions of the Complaint, the allegations regarding punitive damages.

No opposition has been filed to the Demurrer or Motion to Strike.

Analysis

The requests for judicial notice submitted by the moving party in support of the Demurrer and Motion